ATTACHMENT A TO SUBPOENA TO PRODUCE DOCUMENTS
FIRST ADVANTAGE BACKGROUND SERVICES CORP.

Newanforbi v. Federal Express Corporation, E.D. Cal. Case No. 2:26-cv-02881-DAD-SCR

Definitions

1. "You" and "Your" mean First Advantage Background Services Corp. and its affiliates that prepared or furnished background reports to FedEx.

2. "Plaintiff" means Brendan Ngehsi Newanforbi, including under any variation of that name (for example, Brendan Ngwa Nforbi, Brendan Ngwanforbi, Brendan Ngehsi Ngwa-Nforbi, or Ngwa-Nforbi).

3. "Document" has the broadest meaning allowed by Fed. R. Civ. P. 34(a)(1)(A) and includes electronically stored information.

Instructions

1. Produce responsive documents in Your possession, custody, or control. Produce electronically stored information as searchable PDF, or in native form for logs and data.

2. **No appearance is required.** You may comply by mailing or securely emailing true copies of the documents, with the completed Declaration of Custodian of Records (Attachment B), to: Brendan Ngehsi Newanforbi, 1455 Cat Tail Drive, Stockton, California 95204; bnn.cdl@gmail.com, on or before the date stated on the subpoena.

3. Plaintiff is the consumer to whom these records relate. Plaintiff consents to Your disclosure of his own consumer file and report records to him for purposes of this action.

4. If You withhold any document on a claim of privilege or protection, provide the information required by Fed. R. Civ. P. 45(e)(2)(A).

5. Plaintiff will reimburse the reasonable copying costs of production on request. Please contact Plaintiff at bnn.cdl@gmail.com with any question about the scope or format of production before the compliance date.

Documents to Be Produced

REQUEST NO. 1:

Each consumer report and investigative consumer report concerning Plaintiff that You prepared for, or furnished to, Federal Express Corporation, FedEx Ground Package System, Inc., or any other FedEx entity (together, "FedEx") at any time from January 1, 2019 through the present, in every version and in the form furnished, including all component results and updates.

REQUEST NO. 2:
For each report in Request No. 1, all records of each search performed, including for any sex offender registry search: the database or website queried (for example, the National Sex Offender Public Website, the California Department of Justice Megan's Law website, or another source); the raw result returned; the "source of record" information; and the date and time retrieved.

REQUEST NO. 3:
Order records for each report in Request No. 1, including the package ordered, each component, the requesting FedEx user or account, and the dates ordered and completed.

REQUEST NO. 4:
All records of any adjudication, scoring, or eligibility determination applied to each report in Request No. 1, including the "client criteria" or matrix applied and the resulting score.

REQUEST NO. 5:
All communications with FedEx concerning Plaintiff, including portal messages, emails, adjudication notes, and status updates.

REQUEST NO. 6:
Each pre-adverse action and adverse-action notice sent to Plaintiff on behalf of FedEx, with enclosures, and records showing when each was sent and when Plaintiff accessed any portal link.

REQUEST NO. 7:
All disclosure and authorization forms concerning Plaintiff that You received or maintain in connection with any FedEx order, and records of any request by Plaintiff for a copy of a report.

REQUEST NO. 8:
Documents sufficient to show, for the period January 1, 2024 through March 31, 2025, how the search labeled "National Sex Offender Registry" or "National Sex Offender Registry

Search - Department of Justice Web Site" retrieves records of California registrants, including whether it queries the National Sex Offender Public Website, the California Megan's Law website, or a database compiled from either.

REQUEST NO. 9:

Documents sufficient to show the terms of any agreement between You and FedEx in effect during 2024 or 2025 that govern sex offender registry searches for California applicants or compliance with California Penal Code section 290.46.

ATTACHMENT B

DECLARATION OF CUSTODIAN OF RECORDS

(FED. R. EVID. 902(11), 803(6))

Newanforbi v. Federal Express Corporation, E.D. Cal. Case No. 2:26-cv-02881-DAD-SCR

I, _____, declare:

1. I am employed by First Advantage Background Services Corp. as _____, and I am a custodian of records, or am otherwise qualified by my position, to make this declaration.

2. The records produced with this declaration, consisting of _____ pages (Bates or other identification: _____), are true copies of records that were (a) made at or near the time of the acts, events, or conditions they record, by, or from information transmitted by, someone with knowledge; (b) kept in the course of a regularly conducted activity of First Advantage; and (c) made as a regular practice of that activity.

3. ☐ A diligent search was made, and no records responsive to Request No(s). _____ were found.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on _____, 20___, at _____.

_____

Signature

_____

Printed name and title